



DEPARTMENT OF ENVIRONMENT AND CONSERVATION
TENNESSEE STATE PARKS

INCIDENT REPORT

PARK NTSP

DATE: 04-04-11

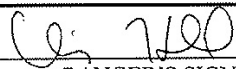
1. INCIDENT Visitor Arrest		2. LOCATION OF INCIDENT HWY 114 and Pin Oak Lodge Rd.		
3. DATE & TIME OF NOTIFICATION 04-04-11 2:30pm		4. DATE & TIME OF RESPONSE		
5. SUBJECT'S NAME Zach Adams	SEX M	RACE W	D.O.B. 06-07-84	D.L.N TN 095530311
ADDRESS 235 Adams Ln. Holladay, TN 38341		PHONE NUMBER		
EMPLOYEE () VISITOR (X)				
6. WITNESSES' NAMES a. Greg Taylor		ADDRESS		PHONE NUMBER
b.				
c.				
7. NARRATIVE: On April 4, 2011 Ranger Chris Hill was assisting with traffic control due to down trees and powerlines at the intersection of Pin Oak Lodge Rd. and Hwy. 114. Ranger Hill was alerting the vehicles that approached from the south on Hwy. 114 and assisting them with alternate directions. While Ranger Hill was speaking to one motorist with about 3 other vehicles behind them a white Nissan pickup with TN tag 574 CBJ came into view from the south, came into the south bound lane, passed around all the stopped cars at a speed too fast for the conditions and continued all the way to where the road was blocked by the trees. The Nissan truck turned around and came back south where Ranger Hill stepped out and motioned for the vehicle to pull over. The occupants, 2 white males, seemed a little nervous. The driver stated that he was bringing his friend out to show him the damage and that he needed to get to the other side of the park. Ranger Hill asked to see the driver's license. The license identified the driver as Zachary Rye Adams TN DL 095530311, dob 06-07-84, of 827 Owl Hollow Rd., Belvidere TN 37306. The correct address was later learned to be 235 Adams Ln., Holladay, TN 38341. Ranger Greg Taylor walked over from his post to assist. While questioning the driver Ranger Hill saw a six pack of 12oz beer bottles in the back floor board. Two of them appeared to be open. When asked about the beverages Mr. Adams stated they were old and he had not drank any recently. At that time Mr. Adams was asked to step out of the vehicle. Ranger Hill asked Mr. Adams if there was anything else in the vehicle that he should not have such as illegal drugs. Mr. Adams stated "no". At that time Mr. Adams gave Ranger Hill permission to search the truck. Ranger Hill reached into the truck and pulled out a small camouflaged bag from the floor board in front of the driver's seat. As Ranger Hill pulled the bag out Mr. Adams grabbed the bag and ran towards the woods on the west side of Hwy 114. Ranger Hill yelled for Mr. Adams to stop and pursued Mr. Adams on foot into the woods. As Mr. Adams ran he unzipped the bag and began trying to pull				

items from the bag. Ranger Hill caught up to Mr. Adams about 25 yds. into the woods and had to tackle Mr. Adams to get him to stop. As Mr. Adams was being tackled he threw the opened bag about 10 feet further into the woods. Mr. Adams continued to struggle and try to free himself until Park Manager Walter Pope arrived to assist Ranger Hill. During the struggle Mr. Adams used his fingernails to try to get Ranger Hill to release him. Mr. Adams was placed in handcuffs and escorted back to the road. The bag was recovered. A search was made for anything Mr. Adams might have been able to throw out of the bag but nothing was found. The bag was found to contain a spoon, two syringes, a pill bottle with several partially smoked marijuana joints, a pill bottle with two different kinds of pills, a bottle labeled as liquid morphine sulfate, and some lighters. A plastic bag was also found inside the camouflaged bag but the plastic bag had been torn and the contents were not located. None of the medicines in Mr. Adams bag were prescribed to him. The passenger of the truck was Robert S. Moody. A pill bottle was found on Mr. Moody containing seven (7) different pills. Henderson County Sheriff's Department was asked to respond to assist with the investigation and transport of the subjects to the Henderson County Criminal Justice Center. A complete search was done of the vehicle. No further contraband was found. The pills were identified using Drugs.com. Mr. Adams was charged with the following:

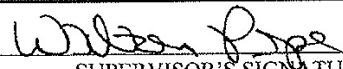
- TCA 39-16-602 Resisting Arrest
- TCA 39-17-425 Possession of Drug Paraphernalia
- TCA 39-17-417 Possession of Schedule VI Drugs (Marijuana)
- TCA 39-17-417 Possession of Schedule IV Drugs (Clonazepam X 3 and Alprazolam X 1)
- TCA 39-17-417 Possession of Schedule III Drugs (Acetaminophen and hydrocodone bitartrate X 1)
- TCA 39-17-417 Possession of Schedule II Drugs (Liquid Morphine sulfate X 16ml)
- TCA 39-16-503 Tampering with evidence
- TCA 55-10-416 Open container law
- TCA 39-13-101 Assault of a Police Officer
- TCA 55-10-205 Reckless Driving

Mr. Moody was charged with the following:

- TCA 39-17-417 Possession of Schedule III Drugs
- TCA 39-17-417 Possession of Schedule IV Drugs



RANGER'S SIGNATURE



SUPERVISOR'S SIGNATURE

If additional space is needed, use the back or attachments.

AFFIDAVIT OF COMPLAINT

IN THE GENERAL SESSIONS COURT OF HENDERSON COUNTY, TN

I, Chris Hill, Affiant herein after being duly Sworn according to law, makes oath and says: Zachary Rye Adams, herein referred to as Defendant, whose name is otherwise unknown to the Affiant, committed to the offense of Assault of a Police Officer

a violation of TCA 39-13-101 in Henderson County, TN
On or about 04/04/ 2011

FURTHER, Affiant makes oath and says that the following facts, constituting said offense, did occur in the above County and State and at the stated time, to wit:

While on a traffic stop with the Defendant the defendant was asked to step out of the vehicle. When asked if there was any other illegal substances in the vehicle the Defendant said "no". Permission was given for the vehicle to be searched. The Affiant pulled a small cloth bag out of the passenger compartment. The defendant grabbed the bag from the Affiant and ran towards the woods. The Affiant told the Defendant to stop and pursued the defendant into nearby woods. When caught the Defendant continued to struggle until a second Ranger arrived to assist. During the struggle the Defendant used his fingernails to scratch the Affiant.

NAME & ADDRESS: AFFIANT

Chris Hill

Natchez Trace State Park Ranger
24845 Natchez Trace Road
Wildersville TN 38388

S S # _____

Dr. Lic.# _____

OCA # _____

DESCRIPTION OF DEFENDANT:

Age: 26 Sex: M ☒ F _____

Height: _____ Ft. _____ In; Weight _____

May be found at: _____

Place of employment: _____

☒ ARREST WARRANT _____ CRIMINAL
SUMMONS _____ CITATION ISSUED

TO ANY LAWFUL OFFICER OF THE
STATE: Based upon the sworn Affidavit of
Complainant, there is probable cause to
believe that the offense named herein is
Assault of a Police Officer

(TCA 39-13-101) was committed by
said County
by the Defendant.

THEREFORE, you are hereby commanded
in the name of the State of Tennessee
forthwith. ARREST _____ SUMMONS _____

Attorney for Defendant

Date

8-30-11

Defendant

JUDGMENT SIMPLE POSSESSION Tennessee Code Annotated 39-17-418

Class "A" Misdemeanor

The Defendant having pled guilty to SIMPLE POSSESSION is hereby sentenced to 11 months and 29 days in the county jail with a fine of \$750. Release eligibility is 75% with credit for time served. The sentence is to serve. The defendant may petition for review in 60 days. The state will not oppose suspension if all conditions of the sentence are completed. Sus To

The defendant shall make complete restitution. The defendant shall have no contact with the victim(s), witnesses, their property or families.

The defendant shall obey all laws. The defendant shall be supervised until all fines, costs, and other conditions are completed or until he reports to jail.

THE DEFENDANT SHALL NOT POSSESS A HANDGUN, KNIFE, OR OTHER DEADLY WEAPON.

All weapons and contraband are forfeited to the state. Restitution in the amount of \$50.00 shall be paid to the arresting agency for storage, testing and destruction of contraband.

The defendant is granted furlough for sixty days for any required counseling and treatment and shall report to community corrections for drug and alcohol screens together with the aforementioned conditions of this judgment. The defendant shall not violate any law ordinance while on furlough. The defendant may be arrested and taken into custody by any law enforcement officer for any violation of any law or ordinance or violation of the conditions of this release. The defendant shall report to jail on _____ at 8:00 a.m.. The defendant agrees to be searched at anytime by community corrections or law enforcement.

Enter this the 30th day of August, 20 11.

GENERAL SESSIONS JUDGE

Page _____ Date 8-20-11

GENERAL SESSIONS COURT OF Henderson COUNTY TENNESSEE

State of Tennessee vs. Zachary Ryan Adams

State Control # _____ Henderson County Case # (1) 66114
(2) 66115

JUDGMENT

☐ Dismissed ☐ Not Guilty ☐ Nolle Prosequi ☐ Pretrial/Judicial Diversion

Costs taxed by the Prosecutor _____

☐ State's motion to not prosecute ☐ after preliminary hearing ☐ affiant did not appear ☐ Defendant waived extradition

Cost taxed to the Defendant _____

☐ Costs and taxes ☐ Cost

Defendant cannot pay fine, costs, and taxes today - due _____

Defendant Indigent _____

1 ✓ Found GUILTY of violation of TCA Reckless Driving
fined \$ 50.00 taxed with costs and taxes and sentenced to serve 6 months _____ days in the Henderson County Jail (Class _____ Misd.)

2 ✓ Found GUILTY of violation of TCA Assault
fined \$ 100.00 taxed with costs and taxes and sentenced to serve 11 months 25 days in the Henderson County Jail (Class _____ Misd.)

Found GUILTY of violation of TCA _____
fined \$ _____ taxed with costs and taxes and sentenced to serve _____ months _____ days in the _____ County Jail (Class _____ Misd.)

Jail sentence suspended except To serve on condition of good behavior, payment of fines, costs and taxes and restitution of _____ and ☐ no contact with _____

☐ supervised probation for _____
☐ not drive in Tennessee for _____ year(s) and completion of ☐ DUI school ☐ alcohol/drug evaluation and counseling ☐ domestic abuse counseling

☐ _____ hours of community service _____
To report to serve on _____ at _____ am/pm. Time served credit _____ ☐ Sentence may be served on consecutive weekends

Release eligibility date is _____ % of the term of imprisonment

☐ Appended ☐ Defendant bound over to _____ County Grand Jury after ☐ preliminary hearing ☐ waiving preliminary hearing and

☐ Bail set at \$ _____ ☐ Defendant shall continue in current bond of \$ _____

Order To run concurrent

See separate sentencing order
8-20-11

Page _____